

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
FATHIMA YUSUF,

Plaintiffs,

-against-

THE CITY OF NEW YORK,  
POLICE OFFICER PHILIP HUYNH, SHIELD  
NUMBER 21011; POLICE OFFICER OLGA  
BENTIN, SHIELD NUMBER 3321  
in their individual and official capacity  
AND POLICE OFFICER JOHN DOE 1,  
POLICE OFFICER JOHN DOE 2,  
POLICE OFFICER JOHN DOE 3,  
in their individual and official capacity,

Defendants.  
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SUMMONS

Index No.:

Date Purchased:

Plaintiff designates  
KINGS County as  
the place for trial

Basis of Venue:  
Site of Incident

YOU ARE HEREBY SUMMONED to answer the complaint in this action, to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Great Neck, NY  
April 12, 2024

Yours, etc.,

MARNI F. SCHLESINGER, PLLC  
Apicella & Schlesinger  
*Attorney for Plaintiff*  
*Fathima Yusuf*  
10 Bond Street, Suite 347  
Great Neck, NY 11021  
(212) 568-4245

To: THE CITY OF NEW YORK  
100 Church Street  
New York, NY 10007

POLICE OFFICER PHILIP HUYNH  
68<sup>th</sup> Precinct  
333 65th Street  
Brooklyn, NY 11220

POLICE OFFICER OLGA BENTIN  
68<sup>th</sup> Precinct  
333 65th Street  
Brooklyn, NY 11220

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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FATHIMA YUSUF

Plaintiffs,

VERIFIED  
COMPLAINT

-against-

Index No.:

THE CITY OF NEW YORK,  
POLICE OFFICER PHILIP HUYNH, SHIELD  
NUMBER 21011; POLICE OFFICER OLGA  
BENTIN, SHIELD NUMBER 3321  
in their individual and official capacity  
AND POLICE OFFICER JOHN DOE 1,  
POLICE OFFICER JOHN DOE 2,  
POLICE OFFICER JOHN DOE 3,  
in their individual and official capacity,

Defendants.

-----X  
Plaintiff, FATHIMA YUSUF, by her attorney, Marni F. Schlesinger, a member of the law  
firm, Apicella & Schlesinger, PLLC, complaining of the Defendants herein, upon information and  
belief respectfully alleges:

1. That at all times hereinafter mentioned, the Plaintiff was and still is a resident of Kings  
County, City and State of New York.
2. That at all times hereinafter mentioned, THE CITY OF NEW YORK, was and still is a  
municipal corporation, duly organized and existing by virtue of the laws of the State of New  
York.
3. That at all times hereinafter mentioned, Defendant POLICE OFFICER PHILIP HUYNH,  
SHIELD NUMBER 21011, was and still is employed by the New York Police  
Department.

4. That at all times hereinafter mentioned, Defendant POLICE OFFICER OLGA BENTIN, SHIELD NUMBER 3321, was and still is employed by the New York Police Department.
5. That at all times hereinafter mentioned, Defendant POLICE OFFICERS JOHN DOE 1-3 were and still are employed by the New York Police Department.
6. That at all times hereinafter mentioned, POLICE OFFICER PHILIP HUYNH, POLICE OFFICER OLGA BENTIN, and POLICE OFFICERS JOHN DOE 1-3 were acting within the scope and course of their employment with the New York Police Department, and under color of State Law.
7. That prior to the institution of this action, a Notice of Claim was duly served upon and filed with the City of New York on behalf of Plaintiff.
8. That the CITY OF NEW YORK held an examination of Plaintiff pursuant to Municipal Law § 50-h hearing on January 23, 2024.
9. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and several liability.
10. This action has been commenced within one year and ninety (90) days after the within cause for action arose including but not limited to any equitable tolling of the statutory time period.
11. The individual Defendants, under color of state law, subjected Plaintiff to the foregoing acts and omissions without due process of the law, thereby depriving Plaintiff of her rights, privileges and immunities secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of

her person, including the excessive use of force; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification of which Plaintiff was aware and did not consent; (d) freedom from the lodging of false charges against them by police; (e) freedom from abuse of process; and (f) the enjoyment of equal protection, privileges and immunities under the laws

**STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION**

12. On or about July 4, 2023, at approximately 10:30 PM, Plaintiff was lawfully on standing on 3<sup>rd</sup> Avenue and 74<sup>th</sup> Street in the in the City of Brooklyn, County of Kings, and State of New York, when she was suddenly and without warning, pushed, shoved, and assaulted about her person by defendants causing her to sustain severe personal injuries.
13. Plaintiff had not committed any violation or crime necessitating her detention by the defendants.
14. At said time and place, defendants further grabbed plaintiff, forcefully shoving her to the ground causing her to slam her head against the pavement, causing her to lose consciousness, and sustain serious and permanent personal injuries.
15. Thereafter, when plaintiff regained consciousness, she did not receive medical care.
16. Plaintiff was instead arrested and processed, handcuffed and shackled and transported to the 68<sup>th</sup> Police Precinct.
17. Plaintiff was taken to Central Booking where she was arraigned and ultimately released on her own recognizance on July 5, 2023 .

**FIRST CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHT UNDER  
THE FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED  
STATES CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON  
FALSE ARREST AND IMPRISONMENT**

18. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herin.
19. That on or about July 4, 2023, at approximately 10:30 P.M., THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants and employees, including but not limited to POLICE OFFICER PHILIP HUYNH, POLICE OFFICER OLGA BENTIN, and POLICE OFFICERS JOHN DOE 1-3, wrongfully and falsely arrested, imprisoned and detained Plaintiff without any right or justifiable grounds therefore
20. That on or about July 4, 2023, at approximately 10:30 P.M., Defendants POLICE OFFICER PHILIP HUYNH, POLICE OFFICER OLGA BENTIN, and POLICE OFFICERS JOHN DOE 1-3 jointly and severally in their capacity as a police officers, wrongfully stopped, handcuffed, and seized the Plaintiff about her person, causing her severe personal injuries, physical pain and mental suffering.
21. That at no time did Defendants have legal cause to stop, handcuff, seize or touch Plaintiff, nor did Plaintiff consent to this illegal touching nor was or privileged by law.
22. That on July 4, 2023, Defendants POLICE OFFICER PHILIP HUYNH, POLICE OFFICER OLGA BENTIN, and POLICE OFFICERS JOHN DOE 1-3, jointly and severally without any warrant, order or other legal process and without legal right, wrongfully and unlawfully arrested Plaintiff, restrained her and her liberty and then took her into custody to the 68<sup>th</sup> Police Precinct, Brooklyn, New York, and elsewhere.

23. That the said arrest, detention and imprisonment was caused by the CITY, its agents, servants and employees, including but not limited to the Defendant police officer, without a warrant and without any reasonable cause or belief that Plaintiff was in fact guilty of any crime.
24. That the CITY, its agents, servants and employees, as set forth above, intended to confine Plaintiff; that Plaintiff was conscious of the confinement; that Plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.
25. That the aforesaid arrest, detention and imprisonment continued at the as a result of the aforesaid actions, including the arrest and imprisonment of Plaintiff without probable cause, Defendants POLICE OFFICER PHILIP HUYNH, POLICE OFFICER OLGA BENTIN, and POLICE OFFICERS JOHN DOE 1-3, deprived Plaintiff of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.
26. As a result of the aforementioned actions, Defendants POLICE OFFICER PHILIP HUYNH, POLICE OFFICER OLGA BENTIN, and POLICE OFFICERS JOHN DOE 1-3 deprived Plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.
27. As a result of the aforementioned actions, Defendants deprived Plaintiff of her right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.
28. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

29. That by reason of the false arrest, imprisonment and detention of Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in her credit and circumstances and was prevented and hindered from performing and transacting her necessary affairs and was caused to suffer much pain in both mind and body, and was otherwise damaged.
30. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and under New York State law.

**SECOND CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHTS  
UNDER THE FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE  
UNITED STATES CONSTITUTION AND NEW YORK STATE LAW PREDICATED  
UPON THE MALICIOUS PROSECUTION OF PLAINTIFF**

31. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.
32. Upon information and belief, on or about July 4, 2023, and from that time until the dismissal of charges on October 4, 2023, which was favorable termination for the accused, Defendants deliberately and maliciously prosecuted Plaintiff, an innocent woman, without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of Brooklyn, County of Kings, City and State of New York, for the purpose of falsely accusing the Plaintiff of violations of the criminal laws of the State of New York
33. The commencement of these criminal proceedings was malicious and began with malice and without probable cause, so that the proceedings could succeed by the Defendants.
34. As a result of the aforementioned actions, including the initiation of the criminal prosecution of Plaintiff without probable cause, Defendants deprived Plaintiff of the



rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.

35. As a result of the aforementioned actions, Defendants deprived Plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments.
36. As a result of the aforementioned actions, Defendants deprived Plaintiff of the right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.
37. The aforementioned conduct by Defendants was motivated and instigated by other than lawful reasons and without probable cause.
38. The aforementioned acts of Defendants were intentional, willful and malicious and performed with reckless disregard for and deliberate indifference to Plaintiff's rights.
39. Plaintiff has suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.
40. The aforementioned constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and under New York State Law.

**THIRD CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION, NEW YORK STATE, AND NEW YORK CITY LAW PREDICATED UPON THE USE OF EXCESSIVE FORCE UPON PLAINTIFF**

41. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.
42. That on or about July 4, 2023, at approximately 10:30 PM, Defendants, jointly and severally in their capacity as police officers, wrongfully stopped, assaulted, handcuffed

and seized the Plaintiff about her person, causing her severe personal injuries, physical main and mental suffering. At no time did Defendants have legal cause to stop, handcuff, seize or touch Plaintiff, no did Plaintiff consent to this illegal touching, nor was it privileged by law.

43. As a result of the aforementioned actions, Defendants deprived Plaintiff of the right to be free from the use of excessive force secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.
44. As a result of the aforementioned actions, Defendants deprived Plaintiff of her right against the use of excessive force against their persons secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.
45. The aforementioned acts of Defendants were intentional, willful and malicious, and performed with a reckless disregard for and deliberate indifference to Plaintiffs rights.
46. Defendants failed to provide prompt medical care to Plaintiff.
47. That by reason of the assault, battery, and use of excessive force upon the Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in her credit and circumstances and was prevented and hindered from performing and transacting her necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.
48. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. § 1983, 1988, New York State, and New York City law.

**FOURT CAUSE OF ACTION AGAINST DEFENDANT CITY UNDER  
RESPONDEAT SUPERIOR AND MONELL CLAIM PURSUANT TO 42 U.S.C § 1983**

49. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.
50. All of the acts and omissions by the individual Defendants, described above were carried out pursuant to overlapping policies and practices of the Defendant, The City of New York, which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendants
51. Defendant CITY, by its policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.
52. Defendants arrested, detained and assaulted Plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and detention would jeopardize Plaintiffs liberty, well-being, safety and constitutional rights.
53. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
54. On or about July 4, 2023, Defendants did stop, seize, search, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner.
55. The Plaintiff suffered great injury without the Defendants' possessing probable cause to do so.
56. The above actions of Defendants resulted in the Plaintiff being deprived of the

following rights under the United States Constitution.

- a. Freedom from assault to her person.
- b. Freedom from battery to her person.
- c. Freedom from illegal search and seizure.
- d. Freedom from false arrest.
- e. Freedom from malicious prosecution.
- f. Freedom from the use of excessive force prior to and during the arrest process.
- g. Freedom from unlawful imprisonment

57. The Defendants subjected Plaintiff to such deprivations, either in a malicious and/ or reckless disregard of the Plaintiff's rights.
58. Defendant, The City of New York, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when it's police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based upon probable cause.
59. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering to her detriment.

WHEREFORE, Plaintiff demands judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for their pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: Great Neck, NY  
April 12, 2024

Yours, etc.,

MARNI F. SCHLESINGER, PLLC  
Apicella & Schlesinger  
*Attorney for Plaintiff*  
*Fathima Yusuf*  
10 Bond Street, Suite 347  
Great Neck, NY 11021  
(212) 568-4245

**AFFIRMATION**

I, Fathima Yusuf, affirm this 12<sup>th</sup> day of April, 2024, pursuant to CPLR § 2106 and under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.



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FATHIMA YUSUF

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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FATHIMA YUSUF

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**APICELLA & SCHLESINGER, PLLC**  
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**SUMMONS AND VERIFIED COMPLAINT**

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